

		David Rodriguez by GERALD Y. HO, M.D., LILY LIU, PA-C and ARTHRITIS & OSTEOPOROSIS MEDICAL CENTER, INC. complied with the applicable standard of care in the medical profession at all times and in all respects, including in 2018-2019. There was no medical evaluation or diagnosis that DR. GERALD HO or LILY LIU, PA-C overlooked or omitted.” Dr. Fan further declares, “It is my professional opinion to a reasonable degree of medical probability that no negligent/substandard act or omission on the part of GERALD Y. HO, M.D., Lily Liu, PA-C and ARTHRITIS & OSTEOPOROSIS MEDICAL CENTER, INC. causes or contributed to the death of David Rodriguez. Nothing that GERALD Y HO, M.D., LILY LIU, PA-C and ARTHRITIS & OSTEOPOROSIS, INC. did or failed to do contributed to or caused the death of the decedent.” The Court finds the medical records relied on by the expert to provide his opinions are properly before the Court pursuant to Garibay v. Hemmat (2008) 161 Cal.App.4th 735, 743. (ROA 122.) Therefore, Defendants sustained their initial, substantive burden. [CCP § 437c(p)(2).] Plaintiff did not file any opposition; and as such, fails to create a triable issue of material fact. Defendants to provide notice and proposed judgment.
2	Kepner vs. Oakmont Senior Living, LLC 22-01243539	1) Motion to Compel Further Responses to Special Interrogatories 2) Motion to Compel Further Responses to Special Interrogatories OFF CALENDAR – Notice of Settlement filed.
3	PTA Real Estate, LLC vs. Zito 22-01258334	1) Motion for Leave to Intervene 2) Case Management Conference

Anthony Zito's ("Anthony") Motion for Leave to Intervene is GRANTED.

The motion is brought pursuant to CCP §387 on the basis that Anthony claims a preemptive right and interest in the same real property transaction that is the subject of this action, and that adjudication of the parties' claims in his absence will irreparably impair, impede and damage his interest.

The Court has broad discretion to permit or deny intervention under CCP §387. (*Jade K. v. Viguri* (1989) 210 Cal.App.3d 1459, 1468.) Intervention may be mandatory or permissive.

The only prejudice Plaintiff argues is that Anthony waited until the action had been pending for two years before filing the motion. Plaintiff contends that, as a result, Plaintiff has already engaged in extensive discovery with Defendant Nada.

This argument does not demonstrate prejudice of the sort that justifies denial of the motion. The implied prejudice to Plaintiff is simply the prejudice that results from the fact of intervention rather than from any delay in seeking intervention. There is currently no trial date set and therefore, in the absence of any specific assertions of prejudice by Plaintiff, the court does not find that the delay in filing the motion makes it untimely.

As to Plaintiff's argument that Anthony's claims are without merit, the court does not adjudicate the merits of Anthony's claims in connection with this motion. Anthony has satisfied his burden in demonstrating that he has the requisite interest in this action (i.e., he has claims that involve asserted interests in the Property at issue herein), and the court finds that the reasons for intervention outweigh the concerns raised by Plaintiff in opposition.

		Accordingly, the motion is granted. Anthony is ordered to comply with CCP § 387(e) by separately filing the Complaint in Intervention within 10 days and serving a copy of the Court’s Minute Order, as set forth in the statute.
4	Satyam 1050 Orange Drive LLC vs. Sai Ram Investments, LLC 22-01296132	Motion for Leave to Intervene The court’s discretion on a motion for leave to sue is limited to whether the claim against the receiver must be asserted in the receivership proceeding or in a separate lawsuit. The court may not deny a motion for leave to sue on the ground that the claim lacks merit. (Jun v. Myers, supra at 124-125.) Because any recovery against the receiver is paid from the receivership estate and thus affects the final accounting, actions challenging the receiver's conduct during the receivership may be pursued until the receiver’s discharge. (Jun v. Myers, supra at 124.) After discharge the receiver is no longer a proper party to an action on his conduct in his official capacity. Here, the receiver has not been discharged and is therefore a proper party to a suit regarding his conduct during the receivership. The unopposed motion by third party G1 International Staffing, LLC (“Claimant”) for Leave to Sue Receiver or, in the Alternative, to Intervene is GRANTED. Claimant seeks leave to either sue the Receiver in an independent action or to file a complaint in intervention in this action against the Receiver for breach of contract and related claims arising out of the receivership. Claimant has not expressed any reason why a separate action would be preferable to a complaint in intervention,